

24STLC05510 24STLC05510

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-09

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Case Number: 24STLC05510 Hearing Date: September 9, 2026 Dept: 25

HEARING DATE: Wed., September 9, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Allstate Northbrook Indemnity Company

v. Darzibashians

COMPL. FILED: 07-31-24

CASE NUMBER: 24STLC05510

NOTICE: OK

PROCEEDINGS: MOTION

FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff

Allstate Northbrook Indemnity Company

RESP. PARTY: None

MOTION FOR LEAVE TO AMEND COMPLAINT

(Code Civ. Proc., § 473(a))

TENTATIVE RULING:

The Court GRANTS

Allstate Northbrook Indemnity Company's motion for leave to file a first amended complaint.

Allstate is to
file the First Amended Complaint within 10 days of this order.

Allstate is to
give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] 16/21
Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 4, 2026 [] Late [X]
None

REPLY: None
filed as of September 4, 2026 [] Late [X]
None

ANALYSIS:

In July
2024, Allstate Northbrook Indemnity Company sued Asmik Darzibashians for \$21,000.00
in property damage. Darzibashians
answered. Allstate now moves for leave
to file a first amended complaint to seek \$21,000 in personal injury (rather
than property damage).

Code of
Civil Procedure section 473, subdivision (a) authorizes a court to let a party
to file an amended pleading "in furtherance of justice." Where there is no prejudice to the opposing
party, courts apply a policy of great liberality in permitting amendments to
the complaint. (Ventura v. ABM

Industries, Inc. (2013) 212 Cal.App.4th 258, 268.)

The Court GRANTS Allstate's
unopposed motion.

Allstate is to
file the First Amended Complaint within 10 days of this order, and to give
notice.